

NYAYAPATH — CITIZEN LEGAL GUIDANCE MEMORANDUM

ETHICAL PROCEDURAL GUIDANCE UNDER INDIAN CRIMINAL LAW

Document ID:	NYP-MO9QLAF8
Date of Guidance:	Saturday, 26 September 2026
Governing Regime:	Bharatiya Nyaya Sanhita (BNS, 2023) & BNSS, 2023 [Post-July 1, 2024 Incident]
Incident Date:	Not specified in query
FIR / Notice Date:	Not specified in query
Verification Engine:	NyayaPath Hand-Verified Statutory Allowlist Gate (2,820 Bare Acts)

MANDATORY STATUTORY NOTICE: This memorandum contains educational legal information synthesized by the NyayaPath reasoning agent. It is designed to assist citizens in understanding criminal offences, procedural rights, and statutory transitions under Indian law. This document does not constitute formal legal representation under the Advocates Act, 1961. Always consult an advocate enrolled with the State Bar Council before initiating judicial proceedings.

1. Understanding of your situation

Your wife has filed a 498A FIR against you, which is an offence under the Bharatiya Nyaya Sanhita (BNS) 85, relating to cruelty by a husband or his relatives. The incidents occurred in August 2024, which falls under the Bharatiya Nyaya Sanhita (BNS) and Bharatiya Nagarik Suraksha Sanhita (BNSS) regime. The BNS and BNSS apply to matrimonial disputes and offences committed by a husband or his relatives against his wife.

2. Possible relevant legal areas

For the offence of cruelty by a husband or his relatives, the relevant provisions are:

- **BNS 85:** Cruelty by husband or relatives of husband - **What this means in plain English:** This law forbids any form of cruelty, including physical, emotional, or financial abuse, by a husband or his relatives towards his wife. - **Why it applies to your case:** The allegations of cruelty by your wife under the 498A FIR fall under this provision.

3. General procedural options that exist

- **FIR Registration under BNSS 173:** The police's legal duty to register an FIR for cognizable offences and your right to an immediate free signed copy.
- **Medico-Legal Certificate (MLC):** The procedure at a government hospital to formally record physical injuries as evidence.
- **Magisterial Remedy under BNSS 175(3):** How to petition the Judicial Magistrate if the local police

refuse or delay registering the case.

- **Legal Aid:** Seek assistance from free legal aid services if you are unable to afford a lawyer.

4. Logical next steps you may consider

- **Step 1: Immediate Safety & Medical Examination:** Visit a government hospital for an MLC and photograph all injuries.

- **Step 2: Draft a Chronological Written Complaint:** Record date, time, location, your wife's name, witnesses, words spoken, injuries, and any other relevant details.

- **Step 3: Lodge the Complaint at the Police Station:** Submit to the Station House Officer (SHO), get a GD receipt, and receive your free FIR copy.

- **Step 4: Escalate if Police Fail to Act:** Send the complaint to the SP/DCP by registered post, or consult a lawyer to file under BNSS 175(3).

- **Step 5: Prove Lawful Marital Relationship & Defense:** Gather evidence such as marriage certificates, witness statements, and any other documents to establish your lawful marital relationship and defend yourself.

5. Documents / information that often help

- [] **Medical Records:** Medico-Legal Certificate (MLC), hospital emergency card, and timestamped photos of visible injuries.

- [] **Proof of Marital Relationship:** Marriage certificates, witness statements, and any other documents.

- [] **Incident Documentation:** Photos/videos of injuries, statements from witnesses, and any other relevant evidence.

- [] **Communications History:** WhatsApp chats, text messages, call recordings of your wife's demands or threats.

- [] **Witness Information:** Contact details of neighbors, family members, or friends who witnessed the incidents.

6. Free legal aid

- **National Legal Services Authority (NALSA):** 24x7 Toll-Free National Legal Helpline 15100.

- **District Legal Services Authority (DLSA):** Located at every District Court complex in India, providing free consultation and appointing free legal aid advocates.

- **Eligibility:** Free legal aid is available to women, victims of violence, persons in custody, and low-income individuals under the Legal Services Authorities Act, 1987.

- **Official Web Portal:** <https://nalsa.gov.in>

7. Important Disclaimer

This is general educational information only and not legal advice. Every case is different. You must consult a qualified advocate before taking any step.

FREE LEGAL AID & EMERGENCY HELPLINE DIRECTORY:

- **National Legal Services Authority (NALSA):** Helpline 15100 (Toll-Free, 24x7)
- **Police Emergency:** 112 | **Women Helpline:** 181 | **Mental Health (Tele-MANAS):** 14416
- **District Legal Services Authority (DLSA):** Available at every District Court complex in India
- **Official Portal:** <https://nalsa.gov.in> | **India Code:** <https://indiacode.nic.in>